MINISTRY OF
INVESTMENT, TRADE AND INDUSTRY

DIRECTIVE OF THE STRATEGIC TRADE CONTROLLER NO. 1/2025
DECLARATION OF UNLISTED ITEMS UNDER SECTION 12 OF
THE STRATEGIC TRADE ACT 2010 [*ACT 708*]

PURPOSE

1. The purpose of this Directive is to notify all exporters including intermediary companies, freight forwarders and other relevant stakeholders of the export, transit and transhipment control over Advanced Artificial Intelligence (AI) Chips that may be used in a restricted activity but are not prescribed as strategic items under section 7 of the Strategic Trade Act 2010 [*Act 708*].

UNLISTED ITEMS (CATCH-ALL CONTROL)

2. In exercising the powers conferred by paragraphs 6(1)*(a)*, *(d)* and *(g)* of Act 708, the Strategic Trade Controller issues the **Directive of the Strategic Trade Controller No. 1/2025: Declaration of Unlisted Items under Section 12 of the Strategic Trade Act 2010 [*Act 708*] for Advanced AI Chips**.

3. Pursuant to subsection 12(1) of Act 708, any person who intends to export, tranship or bring in transit the Advanced AI Chips under the category codes and parameters as specified in paragraph 6 and **Annex I** of this Directives **shall notify** the **Strategic Trade Secretariat (STS), Ministry of Investment, Trade and Industry (MITI), at least 30 days** in advance, if:

   (a) he knows that such Advanced AI Chips are intended to be used, wholly or in part, for or in connection with a restricted activity; or
   (b) he has reasonable grounds to suspect that such Advanced AI Chips are intended or likely to be used, wholly or in part, for or in connection with a restricted activity.

4. For the purpose of this Directive, “restricted activity” as defined in section 2 of Act 708 means —

   (a) any activity that supports the development, production, handling, usage, maintenance, storage, inventory or proliferation of any weapon of mass destruction and its delivery systems; or
   (b) participation in transactions with persons engaged in such activities.

5. With this imposition, any person who intends to undertake activities of export, transhipment or bring in transit of such Advanced AI Chips is required to apply for STA permit after the relevant Authority decided whether to allow those activities to proceed. The application to be accompanied with re-export license from originating countries and export control product classification from manufacturer.

UNLISTED ITEMS CATEGORY CODES AND TECHNICAL PARAMETERS

6. This Directive applies specifically to Advanced AI Chips that fall under the following unlisted items category codes:

(i) **Category 3: 3U090; 3A001.u;**
(ii) **Category 4: 4U090; 4A003.u**; **4A004.u; 4A005.u**
(iii) **Category 5: 5U992; 5A002.u; 5A004.u.**

Note:

Comprehensive descriptions and parameters of products covered under this Directive is as ***Annex I****.*

7. Any entity that falsely declares such items or circumvents permit requirements may be subjected to enforcement under the Act 708 and other applicable domestic laws.

EFFECTIVE DATE

8. This Directive takes effect immediately until further notice.

(VIMALA MURUGAN)
Strategic Trade Controller
Strategic Trade Secretariat
Ministry of Investment, Trade and Industry, Malaysia

Date : 14 July 2025
File : MITI.S.600-1/1/2 Jld.4 (31)

ANNEX I

LIST OF ADVANCED AI CHIPS (UNLISTED ITEMS) UNDER SECTION 12 OF THE STRATEGIC TRADE ACT 2010 [*ACT 708*]
DIRECTIVE OF THE STRATEGIC TRADE CONTROLLER NO. 1/2025

CATEGORY CODE	DESCRIPTIONS	NOTE
CATEGORY 3		
3U090	a. Integrated circuits (IC) having one or more digital processing units having either of the following: a.1 A 'total processing performance' of 4800 or more, or a.2 A 'total processing performance' of 1600 or more and a 'performance density' of 5.92 or more. b. Integrated circuits having one or more digital processing units having either of the following: b.1 A 'total processing performance' of 2400 or more and less than 4800 and a 'performance density' of 1.6 or more and less than 5.92, or b.2 A 'total processing performance' of 1600 or more and a 'performance density' of 3.2 or more and less than	Note 1*:* Integrated circuits specified by *3U090* include graphical processing units (GPUs), tensor processing units (TPUs), neural processors, in-memory processors, vision processors, text processors, coprocessors/accelerators, adaptive processors, field-programmable logic devices (FPLDs), and application-specific integrated circuits (ASICs). Examples of integrated circuits are in the Note to 3A001.a of the Strategic Trade (Strategic Items) List 2025. Note 2: *3U090* does not apply/control to items that are not designed or marketed for use in datacenters and do not have a 'total processing performance' of 4800 or more. Technical Notes: 1. 'Total processing performance' ('TPP') is 2x 'MacTOPS' x 'bit length of the operation', aggregated over all processing units on the integrated circuit. a. For purposes of *3U090*, 'MacTOPS' is the theoretical peak number of Tera (1012) operations per second for multiply-accumulate computation (D=AxB+C). b. The 2 in the 'TPP' formula is based on industry convention of counting one multiply accumulate computation,

CATEGORY CODE	DESCRIPTIONS	NOTE
	5.92.	D=AxB+C, as 2 operations for purpose of datasheets. Therefore, 2 x MacTOPS may correspond to the reported TOPS or FLOPS on a datasheet. c. For purposes of *3U090*, 'bit length of the operation' for a multiply-accumulate computation is the largest bit-length of the inputs to the multiply operation. d. Aggregate the TPPs for each processing unit on the integrated circuit to arrive at a total. 'TPP' = TPP1 + TPP2 + ... + TPPn (where n is the number or processing units on the integrated circuit). 2. The rate of 'MacTOPS' is to be calculated at its maximum value theoretically possible. The rate of 'MacTOPS' is assumed to be the highest value the manufacturer claims in annual or brochure for the integrated circuit. For example, the 'TPP' threshold of 4800 can be met with 600 tera integer operations (or 2 x 300 'MacTOPS') at 8 bits or 300 tera FLOPS (or 2 x 150 'MacTOPS') at 16 bits. If the IC is designed for MAC computation with multiple bit lengths that achieve different 'TPP' values, the highest 'TPP' value should be evaluated against parameters in *3U090*. 3. For integrated circuits specified by *3U090* that provide processing of both sparse and dense matrices, the 'TPP' values are the values for processing of dense matrices (e.g., without sparsity). 4. 'Performance density' is 'TPP' divided by 'applicable die area'. For purposes of *3U090*, 'applicable die area' is measured in millimeters squared and includes all die area of logic dies manufactured with a process node that uses a non-planar transistor

CATEGORY CODE	DESCRIPTIONS	NOTE
		architecture.
3A001	u. Any commodity described in 3A001 of the Strategic Trade (Strategic Items) List 2025 that meets or exceeds the performance parameters in 3U090.	
CATEGORY 4		
4U090	a. Computers, "electronic assemblies," and "components" containing integrated circuits, any of which meets or exceeds the limit in *3U090.a;* or b. Computers, "electronic assemblies," and "components" containing integrated circuits, any of which meets or exceeds the limit in *3U090.b*	Technical Note: For purposes of *4U090.a* and *4U090.b* computers include "digital computers," "hybrid computers," and analog computers.
4A003	u. Commodities specified in 4A003 of the Strategic Trade (Strategic Items) List 2025 that also meet or exceed the performance parameters in *4U090*.	
4A004	u. Commodities that are described in 4A004 of the Strategic Trade (Strategic Items) List 2025 and that also meet or exceed the performance parameters in *4U090*.	

CATEGORY CODE	DESCRIPTIONS	NOTE
4A005	u. Commodities that are specified in 4A005 of the Strategic Trade (Strategic Items) List 2025 that also meet or exceed the performance parameters in *4U090*.	
CATEGORY 5		
5A002	u. Commodities that are described in 5A002.a or 5A002.b or 5A002.c or 5A002.d or 5A002.e, and that also meet or exceed the performance parameters in *3U090* or *4U090*;	
5A004	u. Other commodities that are described in 5A004.a or 5A004.b, and that also meet or exceed the performance parameters in *3U090* or *4U090*	
5U992	u. Commodities classified as mass market encryption commodities in accordance with Note 3: Cryptography Note, Category 5, Part 2 of the Strategic Trade (Strategic Items) List 2025, and that also meet or exceed the performance parameters in *3U090* or *4U090*.	